STATE OF CALIFORNIA
CALIFORNIA CORRECTIONAL HEALTH CASE SERVICES
DEPARTMENT OF CORRECTIONS AND REHABILITATION
AMS 703A (Rev. 03/2025)

REQUEST FOR QUOTATION: NON-IT GOODS
Small Business/Disabled Veteran Business Enterprise (SB/DVBE) Option

Solicitation Number:_____Release Date:_____Due Date: _____

Bid responses must be delivered via email, or fax if applicable, to the state official listed herein on or before 5:00 P.M. PST on the due date above.

BIDDER INFORMATION

Business Name: _____

Address: _____

Contact Person:_____Title: _____

Phone:_____Email: _____

Federal Employer Identification Number (FEIN): _____

Retailer's CA Seller's Permit Number: _____

SB/MB/DVBE Certification #: _____ Certification Expiration Date: _____

Bid Expiration Date: _____

Are you the manufacturer? ☐ Yes ☐ No

*Payment discount offered on invoices to be paid within _____ days of receipt =_____%.

X_____ _____

Bidder Signature Date

Bidder offers and agrees if this response is accepted within 45 calendar days following the date the response is due to furnish all the items upon which prices are quoted, at the prices set opposite each item, delivered to the designated point(s) by the method of delivery and within the times specified and subject to the General Provisions attached or included by reference. *By signing above, with inclusion of the date of signature, the above signed bidder DECLARES UNDER PENALTY OF PERJURY under the laws of the State of California as follows: (1) STATEMENT OF COMPLIANCE - The above signed as complied with the non-discrimination program requirements of Government Code 12990 and Title 2, California Administrative Code Section 8103, and such declaration is true and correct. (2) The National Labor Relations Board declaration set forth in Paragraph 48 of the General Provisions is true and correct. (3) If a claim is made for the Small Business or Disabled Veterans Business preference, the information set forth within is true and correct.*

SOLICITATION #_____

ADDITIONAL SOLICITATION DETAILS

(this section is to be completed by State Official Only)

Deliveries must be completed within _____ calendar days after receipt of order (ARO).

METHOD OF AWARD:

The lowest responsive and responsible bidder meeting all administrative and technical requirements, terms, and conditions of this solicitation will be awarded. For the purposes of this solicitation, requested items shall be awarded based on the option selected below:

☐ All or none – the lowest overall bid price for all items will be awarded.

☐ On the basis of individual items – the lowest bid on each line item will be awarded. The State may accept and choose to award any single line item or any combination of line items as specified in this solicitation.

FREE ON BOARD (F.O.B.) DESTINATION:

For the purposes of this solicitation, only bid responses quoting F.O.B. Destination to the ordering organization's receiving point will be accepted. Responsibility and liability for loss or damage for all orders shall remain with the contractor until final inspection and acceptance, when all responsibility shall pass to the ordering organization, except the responsibility for latent defects, fraud, and any warranty obligations. Acceptable freight payment terms shall be defined based on the selected option below:

☐ Only bids offering Freight Prepaid by the contractor will be accepted. All shipping costs must be included in the cost of the goods. Shipping costs may NOT be listed as a separate stand-alone cost.

☐ Bids offering either Freight Prepaid/ADD or Freight Prepaid by the contractor will be accepted.

STATE OFFICIAL / REQUESTOR CONTACT INFORMATION

Name: _____

Email: _____

Phone: _____

** Fax: _____

Shipping Address:

** For the purposes of this solicitation, facsimile (fax) bid submittals will not be accepted.

Government Code Section 14838.5

This solicitation is a one-time acquisition conducted by the California Department of Corrections and Rehabilitation (CDCR) utilizing the Small Business (SB)/Disabled Veteran Business Enterprise (DVBE) Option as set forth in Government Code Section 14838.5. SB preferences and DVBE requirements and/or incentives are not applicable to this solicitation.

***Payment Discount Offers**

Discounts will not be considered when evaluating bid responses for award purposes. However, discounts may be offered and taken by the State when processing invoices within the timeframe specified. Whenever possible, the CDCR will accept the offer of cash discounts for payment terms other than those specified in the General Provisions Paragraph 30 (i.e. Net 45). *Please do not reference or include payment terms that conflict with the provisions of the California Prompt Payment Act, Government Code Section 927 et. seq. The Act requires state agencies to pay properly submitted, undisputed invoices not more than 45 days after (i) the date of acceptance of goods or performance of services; or (ii) receipt of an undisputed invoice, whichever is later.*

Delivery

Final delivery, inspection, and acceptance shall be at the shipping address location(s) described herein.

Prices

Prices shall be all inclusive. Only the prices submitted in the bid response shall be accepted and included in the awarded purchase order.

New Equipment

All equipment to be provided in response to a State of California solicitation shall be new and latest model in current production. USED, SHOPWORN, DEMONSTRATOR, PROTOTYPE OR DISCONTINUED MODELS ARE NOT ACCEPTABLE.

Substitutions

Substitutions for like items may be accepted at the State's discretion if the requested item is not available and the substitute item is equivalent to, or exceeds the standards, of the original request. The State reserves the right to determine whether a substitute offer is equivalent to and meets the standards of quality required.

Facsimile (FAX) Bid Submittals

For the purposes of this solicitation, faxed bid submittals will not be considered.

CDCR Special Terms and Conditions

If delivering to a CDCR institution, special terms and conditions apply. Suppliers must observe all institution security rules and regulations. Delivery drivers may be required to obtain gate clearance prior to delivery. Suppliers shall contact the institution regarding specific requirements prior to attempting delivery. All persons entering institution grounds must have a valid state driver's license or photo identification card on their person. Clothing restrictions apply. See CDCR Special Terms and Conditions attachment for more details.

Tobacco-Free Environment

Pursuant to Penal Code § 5030.1, the possession or use of tobacco products by any person on the grounds of any institution or facility under the jurisdiction of CDCR is prohibited.

Bidder Declaration (GSPD-05-105)

All suppliers must complete the Bidder Declaration GSPD-05-105 and submit it with the bid response. When completing the declaration, suppliers must identify all subcontractors proposed for participation in the contract; this includes equipment manufacturers, equipment distributors and resellers. A subcontractor is any person,

firm, corporation, or organization contracting to perform any part of the prime's contract. Suppliers awarded a contract are contractually obligated to use the subcontractors for the corresponding work identified unless the State agrees to a substitution and it is incorporated by amendment to the contract. All certified small businesses (SBs) and/or Disabled Veteran Business Enterprises (DVBEs) must perform a "commercially useful function" in the performance of the contract as defined in Government Code Section 14837 (d)(4).

DVBE Program Requirements

The State has established goals for DVBE participation in State contracts. The intent of the DVBE participation requirement and incentive is to encourage DVBE certified suppliers to participate in bidding opportunities, and to encourage non-DVBE firms to seek and include DVBE's as sub-contractors. *For the purposes of this solicitation, the department elects to exempt the DVBE Program Requirements, but opts to include the DVBE Incentive*. This solicitation does not include a required minimum DVBE participation percentage or goal.

SB/DVBE Certification

Suppliers must be certified by California as a small business/DVBE to participate in this solicitation. The DGS Procurement Division, Office of Small Business and DVBE Services (OSDS) is the state's certifying agency. Suppliers claiming preferences/incentives must provide their California SB/MB/DVBE certification number on page 1 of this RFQ. Completed certification applications and required support documents must be submitted to the OSDS no later than 5:00 p.m. on the bid due date and the OSDS must be able to approve the application as submitted. SB/Nonprofit Veteran Service Agencies (NVSA's) must possess certification by California prior to the day and time bids are due. Online applications are located on the Cal eProcure website. Questions regarding certification should be directed to the OSDS at OSDSHelp@dgs.ca.gov or (916) 375-4940. For diverse business organizations, you may email DGS at BusinessOutreach@dgs.ca.gov.

DVBE Declarations (DGS PD 843)

Per the Military and Veterans Code Section 999.2, the DVBE Declarations (DGS PD 843) must be completed and signed by all disabled veteran business owner(s) and disabled veteran business manager(s) when a DVBE contractor or subcontractor will provide materials, supplies, services or equipment. When applicable, the completed form must be included with the bid response.

DVBE Subcontracting – Reporting Requirements

Contractor understands and agrees to comply with the requirements set forth in Military and Veterans Code Section 999 et seq. Should award of this contract be based in part on their commitment to use the Disabled Veteran Business Enterprise (DVBE) subcontractor(s) identified in their bid or offer, per Military and Veterans Code section 999.5 (g), a DVBE subcontractor may only be replaced by another DVBE subcontractor and must be approved by both the awarding department and the Department of General Services (DGS) prior to the commencement of any work by the proposed subcontractor. Changes to the scope of work that impact the DVBE subcontractor(s) identified in the bid or offer and approved DVBE substitutions will be documented by contract amendment. Failure of Contractor to seek substitution and adhere to the DVBE participation level identified in the bid or offer may be cause for contract termination, recovery of damages under rights and remedies due to the State, and penalties as outlined in MVC Section 999.9; Public Contract Code (PCC) Section 10115.10.

Upon completion of this Contract, the department requires the prime contractor to certify information using the Prime Contractor's Certification – DVBE Subcontracting Report (STD 817). If for this Contract, the Contractor made a commitment to achieve the DVBE participation goal by subcontracting to a DVBE, the Department will withhold $10,000 from the final payment, or the full final payment if less than $10,000, until the Contractor complies with the certification requirements above. A Contractor that fails to comply with the certification requirement shall, after written notice, be allowed to cure the defect. Notwithstanding any other law, if, after 30 calendar days from the date of written cure notice, the prime contractor refuses to comply with the certification requirements, the department shall permanently deduct $10,000 from the final payment, or the full payment if less than $10,000. (MVC § 999.7)

A person or entity that knowingly provides false information shall be subject to a civil penalty for each violation. (MVC § 999.5(d); Govt. Code § 14841).
Contractor agrees to comply with the rules, regulations, ordinances, and statutes that apply to the DVBE program as defined in Section 999 of the MVC, including, but not limited to, the requirements of Section 999.5(d). (PCC Code § 10230).

DVBE subcontractors will be notified at the time of award that their firm has been listed for participation in an agreement. Upon request, the prime contractor shall also provide proof of payment to the DVBE for subcontractor work.

Tire-Derived Products Preference

Per Public Resources Code (PRC) section 42890 et seq., a 5 percent (5%) recycle preference is available for recycled tire products (also known as tire-derived products). When evaluating bids, application of the tire recycle preference is only applicable if both virgin products and recycled content products (RCP) are acceptable for a line item. Should only recycled content products be bid, then the preference is not calculated. Should a solicitation include a mix of line items containing both qualified and non-qualified tire-derived RCPs, the preference shall only apply to qualified line items. If line item awards are made, the preference shall be applied, to the extent possible, so as to maximize award to bidders proposing recycled tire products (PRC section 42892).

California Civil Rights Laws Certification

Pursuant to Public Contract Code 2010, a person that submits a bid to, or otherwise proposes to enter into or renew a contract with, a state agency with respect to any contract in the amount of one hundred thousand dollars ($100,000) or more shall certify, under penalty of perjury, at the time the bid is submitted or the contract is renewed, compliance with the Unruh Civil Rights Act. (Section 51 of the Civil Code) and the Fair Employment and Housing Act (Section 12960 of the Government Code).

Recycled Content Products

State agencies are required to report purchases in many product categories. In order to comply with those requirements, suppliers are required to complete and return the attached Postconsumer Recycled-Content Certification form (CalRecycle 74) with their bid response. Failure to complete and return the form may disqualify your bid from consideration. More information is located at: http://www.calrecycle.ca.gov/BuyRecycled/StateAgency/.

Payee Data Record (STD. 204), STD 204 Supplement Vendor Payee Data Record Form and Payee Data Record Supplement (STD 205)

The successful bidder ***may*** be required to submit a Payee Data Record, STD. 204, and/or a STD 204 Supplement CCHCS Supplement Vendor Payee Data form listing payee information and their Taxpayer Identification Number (upon request prior to award if currently not on file with CDCR or if there are business information updates needed).

Prohibition on Tax Delinquents

Persons or companies identified as the largest tax delinquents by the Franchise Tax Board (FTB) or the California Department of Tax and Fee Administration (CDTFA) under authority of Sections 7063 or 19195 of the Revenue and Taxation Code, shall be disqualified from the bidding process. PCC §10295.4. Contractors included on tax delinquency lists; contracts void and unenforceable; (a) Notwithstanding any other law, a state agency shall not enter into any contract for the acquisition of goods or services with a contractor whose name appears on either list of the 500 largest tax delinquencies pursuant to Section 7063 or 19195 of the Revenue and Taxation Code. Any contract entered into in violation of this subdivision is void and unenforceable. (b) This section shall apply to any contract executed on or after July 1, 2012.

DARFUR Contracting Act

All bidders will be required to submit a completed DARFUR Contracting Act Certification Form. Effective January 1, 2009, CDCR generally cannot contract with "scrutinized" companies that do business in the African nation of Sudan, as described in PCC §§ 10475 -10478. A company that currently has (or within the previous three years has had) business activities or other operations outside of the United States must certify that it is not a "scrutinized" company when it submits a bid or proposal to CDCR. A scrutinized company may still submit a bid or proposal for a contract with CDCR if the company first obtains permission from the DGS.

California Seller's Permit

If applicable, award will be contingent upon providing your company's California retailer's seller's permit number or certification of registration and, if applicable, the permit or certification of all participating affiliates, issued by the California Department of Tax and Fee Administration (CDTFA), pursuant to all requirements as set forth in §§ 6487, 7101 and sections 6452.1, 6487.3, 18510 of the Revenue and Taxation Code, and Section 10295.1 of the Public Contract Code. To expedite the process of verifying the validity of the permit, provide the CDTFA issued seller's permit number on page 1 of this RFQ or attach a copy of the permit with your bid response.

Responsive Bid

A bid that clearly substantiates compliance, without material deviation, with all specifications, requirements, and the terms and conditions of the solicitation. If a bidder has been determined to be non-responsive, the bid shall be rejected.

Responsible Bidder

Bidders may be required to submit further evidence of their qualifications at such times and under conditions, as it may deem necessary. If a bidder has been determined to be non-responsible, the bid shall be rejected.

Bid Evaluation – Tie Between Bidders

In the event of a precise tie between bidders, the CDCR procurement official will conduct a coin toss or a similar objective method. At least one witness must observe and document the coin toss. Affected bidders will be given the opportunity to attend the tie breaker coin toss. An email notification will be sent to the affected bidders at least 24 hours before the coin toss is conducted.

Note: In the event of a precise tie between the bid of an SB/MB and the bid of a DVBE that is also a SB/MB, the award shall go to the DVBE that is also an SB/MB. (Reference GC section 14838 (f) and 2 CCR section 1896.8(f)).

Note**:** Recycled tire product contracts will be awarded to the bidder whose product has the greatest percentage of recycled tire content if the fitness, quality, and price are equal. (PRC section 42894) "Recycled tire product" means a product with not less than 50 percent of its total content derived from recycled used tires. (PRC section 42890).

Supplier Terms and Conditions / Quotation Attachments

Quote responses that reference a supplier's own terms and conditions, legal terms, or provisions that conflict with the State's General Provisions shall be considered non-responsive and will be rejected. The state objects to and will not evaluate or consider any additional terms or conditions submitted by a bidder.

Confidentiality

During the evaluation of bids received in response to a competitive solicitation and prior to contract award information relating to bid evaluation is confidential. Any disclosure of confidential information by the bidder during the procurement process is a basis for rejecting the bidder's proposal and finding the bidder ineligible. Total confidentiality during the procurement process is vital to preserve the integrity of the process.

Loss Leader

It is unlawful for any person engaged in business within this state to sell or use any article or product as a "loss leader" as defined in § 17030 of the Business and Professions Code. A "loss leader" is any article or product sold at less than cost: (a) where the purpose is to induce, promote, or encourage the purchase of other merchandise; or (b) where the effect is a tendency or capacity to mislead or deceive purchasers or prospective purchasers; or (c) where the effect is to divert trade from or otherwise injure competitors.

Change Orders / Amendments

Any purchase order resulting from this quote may be amended, modified (within the scope of the original agreement), or terminated at any time by mutual agreement of the parties in writing. Change orders amending, modifying, or terminating the purchase order, including modifications of compensation payable, may only be issued by an authorized State Procurement Official. All such change orders shall be in writing and issued only upon written concurrence of the supplier.

Limitations

Senate Bill (SB) 34 declares that a contract that was entered into because of an act that would constitute a violation of a state or federal crime relating to bribery of a public official, including, but not limited to, a violation of Section 68 or 86 of the Penal Code, is voidable. The provisions of SB 34 apply to contracts executed on or after January 1, 2023, including contracts negotiated prior to January 1, 2023.

Executive Order N-6-22 – Russia Sanctions

On March 4, 2022, Governor Gavin Newsom issued Executive Order N-6-22 (the EO) regarding Economic Sanctions against Russia and Russian entities and individuals. "Economic Sanctions" refers to sanctions imposed by the U.S. government in response to Russia's actions in Ukraine, as well as any sanctions imposed under state law. By submitting a bid or proposal, Contractor represents that it is not a target of Economic Sanctions. Should the State determine Contractor is a target of Economic Sanctions or is conducting prohibited transactions with sanctioned individuals or entities, that shall be grounds for rejection of the Contractor's bid/proposal any time prior to contract execution, or, if determined after contract execution, shall be grounds for termination by the State.

Target Area Contract Preference Act (TACPA)

This solicitation provides for the optional TACPA preference. Bidders are not required to apply for this preference. Denial of the TACPA preference request is not a basis for rejection of the bid/offer.

The TACPA workplace and workforce preferences will be evaluated and awarded for this solicitation. California-based companies seeking award of the TACPA preferences will need to complete and submit preference request forms with the bid/offer. The following webpage contains required preference request forms and an interactive map to determine if a business is located within a TACPA qualified zone: https://www.dgs.ca.gov/PD/Services/Page-Content/Procurement-Division-Services-List-Folder/Request-a-Target-Area-Contract-Preference.

By submitting TACPA forms, a bidder given a TACPA preference agrees to the TACPA contract provisions required by Government Code section 4535 and provided in section 1896.40 of Title 2 of the California Code of Regulations (CCR) in addition to requirements specified on the TACPA form STD 830.

Generative Artificial Intelligence (GENAI)

The State of California seeks to realize the potential benefits of GenAI, through the development and deployment of GenAI, while balancing the risks of these technologies.

Bidder/Offeror must notify the State in writing via the AMS 708 – Generative Artificial Intelligence (GenAI) Disclosure & Factsheet if it: (1) intends to provide GenAI as a deliverable to the State; or (2), intends to utilize GenAI, including GenAI from third parties, to complete all or a portion of any deliverable that materially impacts:

(i) functionality of a State system, (ii) risk to the State, or (iii) Contract performance. For avoidance of doubt, the term "materially impacts" shall have the meaning set forth in State Administrative Manual (SAM) 4986.2.

Failure to report GenAI to the State may result in disqualification. The State reserves its right to seek any and all relief it may be entitled to as a result of such non-disclosure.

Upon notification by a Bidder/Offeror of GenAI as required, the state reserves the right to incorporate GenAI Special Provisions into the final contract or reject bids/offers that present an unacceptable level of risk to the state.

Government Code 11549.64 defines "Generative Artificial Intelligence (GenAI)" as an artificial intelligence system that can generate derived synthetic content, including text, images, video, and audio that emulates the structure and characteristics of the system's training data.

Assembly Bill 778 – Purchase of California-Grown Agricultural Food Products

Assembly Bill 778, Institutional Purchasers: Purchase of California-Grown Agricultural Food Products (2021-2022) amended Section 58595 of the Food and Agricultural Code, requiring a California state-owned or state-run institution that purchases agricultural food products to ensure at least 60% of the agricultural food products that it purchases in a calendar year are grown or produced in the state by December 31, 2025. If a bidder is offering agricultural food products, the OBS 1600 form is required for the state's data collection and reporting towards the 60% goal. Bidder must identify if the agricultural food product is grown or produced in California or not.

Solicitation Attachments

The following documents are attached, or incorporated by reference, and are considered part of this solicitation.

- Request for Quotation, AMS 703A – Attachment 1
- CCHCS Acquisition Quote Worksheet, AMS 704B – Attachment 2
- Bid Package and Forms – Attachment 3
  - CDCR Special Terms and Conditions
  - Bidder Instructions (DGS PD 451)
  - General Provisions, Revised and Effective 02/20/2025 (DGS PD 401-NITGP)
  - Post-Consumer Recycled Content Certification (CalRecycle 74), Guidance on Form 74 for Vendors
  - Bidder Declaration (GSPD-05-105)
  - Darfur Contracting Act Certification (DGS PD 1)
  - Commercially Useful Function Verification (CCHCS MC-345)
  - DVBE Declarations (DGS PD 843), if applicable (Only needed from DVBE vendors)
  - Generative Artificial Intelligence (GenAI) Disclosure & Factsheet (AMS 708)
  - Voluntary Statistical Data Sheet (DGS PD 802), optional
  - Target Area Contract Preference Act (STD 830), for bids over $100,000, optional as determined by supplier
  - California Civil Rights Laws Certification (DGS OLS 04), for bids over $100,000, if applicable (refer to page 5 of 9 for further instructions)
  - Distribution List / Delivery Schedule, for multiple shipping locations or delivery dates, if applicable
  - Special Provisions Statement of Work and/or Warranty Agreement, if applicable

- New vendor or vendor updates bid package and forms – Attachment 4, if applicable
  - Payee Data Record (STD 204)
  - Supplement Vendor Payee Data Record Form (STD 204 Supplement)
  - Payee Data Record Supplement (STD 205)
- Other Attachments
  - Executive Order N-6-22 – Economic Sanctions against Russia and Russian entities and individuals
  - Executive Order N-12-23 – Generative Artificial Intelligence (GENAI)
  - General Terms and Conditions (GTC - 417) and Contractor Certification Clauses (GIA - 610)

Others: _____

Response List

The following list identifies the items that must be completed and returned (if applicable) in order to be evaluated for award:

- ☐ Request for Quotation (AMS 703A) – Attachment 1 (all pages) including:
  - Signed / Dated front page
  - California Seller's Permit Information (attach a copy of the CA Seller's Permit)
  - FEIN #
  - SB/MB/DVBE Certification Number
- ☐ CCHCS Acquisition Quote Worksheet (AMS 704B) – Attachment 2
- ☐ Bid Package and Forms – Attachment 3
  - ☐ Post-Consumer Recycled Content Certification (CalRecycle Form 74)
  - ☐ California Grown-Produced Agricultural Food Products Vendor Certification(OBS 1600), if applicable
  - ☐ Bidder Declaration (GSPD-05-105)
  - ☐ Darfur Contracting Act Certification (DGS PD 1)
  - ☐ Commercially Useful Function Verification (CCHCS MC-345)
  - ☐ DVBE Declarations (DGS PD 843), if applicable (Only needed from DVBE vendors)
  - ☐ Generative Artificial Intelligence (GenAI) Disclosure & Factsheet (AMS 708), if applicable
  - ☐ Drug-Free Workplace Certification (STD 21), optional
  - ☐ Voluntary Statistical Data Sheet (DGS PD 802), optional
  - ☐ Target Area Contract Preference Act (STD 830), for bids over $100,000, optional as determined by supplier
  - ☐ California Civil Rights Laws Certification (DGS OLS 04), for bids over $100,000, if applicable (refer to page 6 of 10 for further instructions)
- ☐ New Vendor or Vendor Updates Bid Package and Forms – Attachment 4, if applicable
  - ☐ Payee Data Record (STD 204)
  - ☐ Supplement Vendor Payee Data Record Form (STD 204 Supplement)
  - ☐ Payee Data Record Supplement (STD 205)

Failure to return any applicable item in the above list with the bid response may result in your bid being considered non-responsive and may be rejected.